

UNIVERSITY OF SANTO TOMAS
ESPANA, MANILA 1008

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UST STUDENTS' ELECTION CODE OF 2011

ARTICLE I
GENERAL PROVISIONS

Section 1. Title. This Code shall be known as the "UST Students' Election Code of 2011(USEC)."

Section 2. Declaration of Principles. This code shall promote honesty and integrity in the electoral process and shall ensure that the true will of the electorate is upheld. It shall take positive and effective measures against undue influence from political parties, incumbent student council officers, alumni, and the administration.

A strong and united political movement shall be encouraged through the granting of privileges to political parties.

Suffrage may be exercised by all *bona fide* students of the University of Santo Tomas not otherwise disqualified by law. No literacy, property, or other substantive requirement shall be imposed on the exercise of suffrage.

Section 3. Scope and Applicability. This code shall provide for the structure and functions of the Central and Local Commission on Elections and shall afford guidelines for the recognition of political parties.

It shall govern the election of officers of the Central Student Council, Local Student Councils, and, if so requested, Student Organizations of the University of Santo Tomas and shall also provide the procedure for initiatives and referenda.

Section 4. Construction and Interpretation. The provisions of this code shall be liberally construed in favor of the promotion of free, orderly, and honest elections and the just, expeditious, and inexpensive determination and disposition of every action and proceeding brought before the Commission on Elections.

In the absence of a Local Constitution provision regarding the conduct of election, the CSC Constitution shall apply. In case the CSC Constitution does not provide a specific provision regarding the conduct of elections, the USEC of 2011 shall apply in a suppletory character, unless otherwise provided.

Section 5. Definition of Terms. The following shall mean and be understood as follows:

- a. *"Alumni"* refer to persons who have graduated from a faculty, college, institute or school of the University of Santo Tomas.
- b. *"Bona fide student"* refers to a person enrolled in the University of Santo Tomas with a sufficient number of units as determined by their respective faculty, college, institute or school.

- c. *"Candidate"* refers to any person aspiring for or seeking an elective office who has filed his certificate of candidacy; provided that, a candidate running under the banner of a political party shall be a member of such political party as defined under this code.
- d. *"Contribution"* includes any gift, donation, subscription, loan, advance or deposit of money or anything of value, or a contract, promise or agreement to contribute, whether or not legally enforceable, made for the purpose of influencing the results of the elections but shall not include services rendered without compensation by individuals volunteering a portion or all of their time on behalf of a candidate or political party. It shall also include the use of facilities voluntarily donated by other persons the money value of which can be assessed based on the rate prevailing in Manila.
- e. *"Election campaign"* or *"partisan political activity"* refers to any act designed to promote the election or defeat of a particular candidate or candidates to a public office which may include any of the following:
 - I. Forming organizations, clubs, committees or other groups of persons for the purpose of campaigning for or against a candidate;
 - II. Holding political caucuses, conferences, meetings, rallies, parades or other similar assemblies for the purpose of soliciting votes and/or undertaking any campaign or propaganda for or against a candidate;
 - III. Making speeches, announcements or commentaries, or holding interviews for or against the election of any candidate for public office;
 - IV. Publishing or distributing campaign literature or materials designed to support or oppose the election of any candidate; and
 - V. Directly or indirectly soliciting votes, pledges or support for or against any candidate.
- f. *"Expenditure"* includes the payment or delivery of money, anything of value, or a contract, promise or agreement to make expenditure, for the purpose of influencing the results of the election. It shall also include the use of facilities personally owned by the candidate, the money value of the use of which can be assessed based on the rates prevailing in the area.
- g. *"Independent candidate"* refers to a candidate who is not running under the banner of a political party.
- h. *"Political party"* or *"Party"* refers to an organized group of students pursuing the same ideology, political ideas or platforms of government and includes its branches and divisions. It can be categorized into either of the following:
 - 1) *"Central political party"* or *"Central party"* when used in this Code, means a political party organized for university-wide electoral activity having a minimum member of fifty (50) students and at least two (2) representatives from at least fifteen (15) faculties, colleges, schools, and/or institutes.
 - 2) *"Local political party"* or *"Local party"* when used in this Code, means a political party organized for local or college-based electoral activity having a minimum member of thirty-five (35) students and all year levels must be represented. However, in colleges with a total population of one thousand (1,000) students or less, there should be

a minimum of twenty-five (25) students, provided, there should be a minimum membership of twenty (20) students in colleges with a total population of five hundred (500) students or less.

- i. *“Political party member”* refers to a person duly registered by their respective political party within the period provided by the Commission on Elections.
- j. *“Program”* refers to an academic discipline composed of a series of courses in which a student enrolls and which, when completed, will lead to conferral of a degree.
- k. *“School days”* refers to any day from Monday to Saturday excluding national, local, and university-wide holidays and days within which classes are suspended by the Secretary General of the University of Santo Tomas.

Section 6. *Date of elections.* Unless otherwise fixed in special cases by the Central COMELEC, the regular elections:

- (a) For officers of the CSC and LSC shall be held every third Friday of February;
- (b) For officers of the class and/or section shall be held not later than twenty-one (21) calendar days from the opening of each semester.

Section 7. *Postponement of elections.* When for any serious cause that the holding of free, fair, honest, and orderly elections should become impossible in any political subdivision, the Central COMELEC, *motu proprio* or upon a petition by any interested party, and after due notice and hearing, shall postpone the election. The postponement shall not be later than five (5) school days from the supposed date of election, but shall not be later than three days after the cessation of the cause for such postponement or suspension of elections. Serious cause shall mean any event such as violence, loss or destruction of election paraphernalia or records, *force majeure*, and/or other analogous causes of such nature.

Section 8. *Failure of elections.* The Central COMELEC, *motu proprio* or upon a petition of any interested party, may call for the holding of special elections after due notice and hearing, under any of the aforementioned grounds or other analogous causes of such nature as to render any CSC or LSC election held, or yet to be held, invalid. It shall be held at the earliest practicable date, but in no case shall such special election be called not later than thirty (30) school days after the cessation of the cause for such failure of elections.

If for any reason, less than twenty-five percent (25%) of the voting population cast their votes in any election, the COMELEC unit concerned shall declare a failure of elections. The Central COMELEC or Local COMELEC concerned shall call for a special election to be held within fifteen (15) school days from a declaration of failure of CSC or LSC elections.

Section 9. *Call for special elections.* A special election shall be called only in two circumstances: failure of election or a vacancy. In case a vacancy in the CSC arises three (3) months or more before the regular election, the Central COMELEC shall call a special election, to be held within fifteen (15) school days after the vacancy occurs, in order to elect an officer to serve the unexpired term. In an election where votes declared void obtain the highest number, the Central COMELEC or the Local COMELEC concerned shall call for a special election, to be held within the month of June of the Semester subsequent to the election. In all cases, the Central Candidates shall be given six (6) school days and the Local Candidates three (3) days to campaign.

As used in this Code, the term ‘special election’ shall be understood to mean elections held by the CSC Executive Board, or in proper case, by the student assembly of the local unit concerned, convening as an electoral body. Such special elections shall be administered by the Central COMELEC, or by the appropriate Local COMELEC unit, respectively.

The Central COMELEC shall send sufficient copies of its resolution for the holding of a special election, to the chairpersons of the various Local COMELEC units for dissemination who shall post copies thereof in at least six conspicuous places in their respective faculties, colleges, schools, or institutions.

Section 10. *Who may be voted for.* Only members of the CSC Executive Board, or in proper case, of the student assembly of the local unit concerned, shall be eligible for election in special election.

Section 11. *Failure to assume office.* The office of any elected official who fails or refuses to take his office within fifteen days from his proclamation shall be considered vacant unless said failure is for a cause or causes not imputable to him or beyond his control.

Section 12. *Election expenses.* Except in local elections, such expenses as may be necessary and reasonable in connection with the elections, referenda, plebiscites, and other similar exercises shall be paid by the Central COMELEC.

The Central COMELEC may direct that in local elections, the election expenses chargeable to the Local COMELEC unit involved be advanced by the LSC concerned subject to reimbursement by the Local COMELEC unit upon presentation of the proper bill.

Section 13. *COMELEC funding.* The COMELEC shall derive its funds directly from the Office of the Vice Rector for Finance, which shall be included in the miscellaneous fees of every Semester, a cumulative fund of five pesos (Php 5.00) COMELEC fee for the Central COMELEC and a separate five pesos (Php 5.00) for Local COMELEC in faculties, colleges, institutes, or schools with Local Student Councils through the Dean, Principal or Director and Regent of the concerned unit.

Section 14. *Ex-officio adviser.* The Office for the Student Affairs shall assign an adviser for the COMELEC. Otherwise, the legal consultant of the Office for Student Affairs shall be the ex-officio adviser for the Central COMELEC. The Assistant Dean, or in the absence thereof, the Local coordinator for the Student's Welfare and Development Board (SWDB) shall be the ex-officio adviser for the Local COMELEC unit. The ex-officio adviser shall convene the Central COMELEC or the Local COMELEC unit concerned on or before the first Friday of March, unless otherwise provided by the COMELEC *En Banc*, for the election of the Chairperson thereof.

ARTICLE II CENTRAL COMELEC

Section 1. *Composition.* The Central COMELEC shall be composed of one (1) representative from each faculty, college, school, or institute who shall be elected from among the members of the Local COMELEC Units. Once a representative is elected, he/she shall automatically forfeit his membership in the Local COMELEC and shall become a member or commissioner of the Central COMELEC. It shall elect from and among its members a chairperson and a vice chairperson.

Section 2. *Powers and Functions.* The Central COMELEC shall have exclusive charge of the enforcement and administration of the provisions of this Code relative to the conduct of elections, plebiscite and recall for the purpose of ensuring free, fair, orderly, and honest elections, and shall:

- (a) Exercise direct and immediate supervision and control over all the Local COMELEC units in the university in the performance of their duties;
- (b) Promulgate rules and regulations in the form of an Executive Order implementing the provisions of this Code, as well as such directives that are necessary for the ordinary administration of the commission;

- (c) Discipline erring members of the commission and, after due notice and hearing, and for just cause, relieve such erring member from performance of his duties;
- (d) Exclude unauthorized persons from those buildings where polls or the canvassing of votes are being held;
- (e) Deputize, with the concurrence of the University administration, security guards of the University, for the exclusive purpose of free, orderly, honest, peaceful and credible elections;
- (f) Summon the parties to a controversy pending before it, and take the testimony of the complaint, defendant, and/or witnesses in any investigation or hearing before it.

Any controversy submitted to the Central COMELEC shall, after compliance with the requirements of due process, be immediately heard and decided by it within fifteen days from submission thereof. No decision or resolution shall be rendered by the Central COMELEC either en banc or by its legal division unless taken up in a formal session properly convened for the purpose.

- (g) Issue resolutions in the exercise of its exclusive original jurisdiction over all contests relating to the elections, returns and qualifications of all the elective Executive Board Officers, and exclusive appellate jurisdiction over all cases decided by the Local COMELEC units in the exercise of its election protests and/or election offenses;
- (h) Be the sole administrator of the conduct of the elections for the CSC and all authorized university-wide referenda and plebiscites. It shall be charged with the canvassing of election returns and the proclamation of the winners. Said proclamation must be made not later than fifteen days (15) school days from the date of elections;
- (i) Investigate and, where appropriate, prosecute and revoke cases of candidacy or any political party found to be in violation of the provisions of this Code. In such cases, the COMELEC may file the necessary complaint of any candidate or political party found to be guilty of an election offense, for disciplinary action before the Office for Student Affairs;
- (j) Prepare and submit the election report to the Office for Student Affairs and to the appropriate university authorities;
- (k) Prescribe the forms to be used in the election, plebiscite or referendum;
- (l) Prescribe the use or adoption of the latest technological and electronic devices, taking into account the situation prevailing during the time of the election and the funds available for the purpose. Provided that the Commission shall notify the authorized representatives of accredited political parties and candidates affected by the use or adoption of technological and electronic devices not less than thirty (30) calendar days prior to the effectivity of the use of such devices;
- (m) Stop any illegal election activity, or confiscate, tear down and stop any unlawful, libelous, misleading or false election propaganda, after due notice and hearing;
- (n) Visit the headquarters of political parties, if any, and inspect pertinent documents relating to their registration or regarding elections;

- (o) Perform other powers and functions necessary or related to the foregoing, as the COMELEC may deem just and reasonable.

The Central COMELEC shall perform such other functions as may be necessary for the full implementation of this Code, consistent with the requirements of free, fair, honest, and orderly elections.

Section 3. COMELEC Executive Board. The COMELEC Executive Board shall be composed of a Chairperson, Vice Chairperson, Secretary to the Executive, Secretary to the Adjudicatory, Finance Officer, Legal Officer, Logistics Officer, Operations Officer, and Public Information Officer.

The Chairperson shall:

1. Perform executive duties, functions and responsibilities, such as but not limited to signing of all documents and communications of the Central COMELEC;
2. Preside over the meetings of the Central COMELEC.
3. Present the UST Students' Election Code to the Central COMELEC; and
4. Exercise such other powers, which are inherent in his office and shall perform such other duties as maybe necessary or incidental to the performance of his function or as the Central COMELEC may provide.

The Vice Chairperson shall:

1. Coordinate internal and external affairs of the Central COMELEC;
2. Perform the executive duties, functions and responsibilities of the Chairperson in case of absence of such;
3. Act as an Ex-Officio member of the Legal Division; and
4. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Secretary to the Executive shall:

1. Prepare and file communications and documents of the Central COMELEC;
2. Record the proceedings of the meetings of the Central COMELEC;
3. Be responsible for the safekeeping of the records and documents of the Central COMELEC;
4. Furnish copies of the minutes of the meetings to the members of the Central COMELEC on the immediately succeeding meeting and provide copies of other records and documents as may be requested; and
5. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Secretary to the Adjudicatory shall:

1. Receive and file complaints and other legal documents of the Adjudicatory Board and Legal Division;
2. Prepare the Resolutions and Decisions of the Adjudicatory Board and Legal Division;
3. Prepare the policies and memoranda of the Adjudicatory Board and Legal Division;
4. Present the filed complaints and other legal documents of the Adjudicatory Board and Legal Division to the Central COMELEC Adviser.
5. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Finance Officer shall:

1. Prepare the budget proposal of the Central COMELEC at the start of his term with the affixed signature of the Chairperson and then Adviser of the Central COMELEC. The budget proposal must contain the budget for the following expenses: food, supplies, transportation, logistics, information dissemination, documentation, and contingency. 10% of the Budget received shall be allotted as a contingency fund.
2. Request the budget allotted for the Central COMELEC from the Treasurer's Office;

3. Serve as a Custodian of Funds and Disbursement Officer of the Central COMELEC;
4. All disbursements must be accompanied with official receipts or vouchers. In lieu of official receipts, vouchers may be used for expenses not exceeding Php 200.00.
5. Ensure the safety and confidentiality of the financial documents of the Central COMELEC;
6. Prepare and update the financial reports of the Central COMELEC;
7. Provide the Central COMELEC, the Office for Student Affairs and the Treasurer's Office with copies of the financial report;
8. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Legal Head shall:

1. Act as Chairperson of the Legal Division;
2. Facilitate the decision-making process on election controversies involving candidates of the CSC;
3. Recommend rules and regulations for the orderly conduct of election;
4. Provide legal opinion on cases concerning the orderly conduct of election; and
5. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Operations Officer shall:

1. Organize projects, events and mandated activities of the Central COMELEC, such as preparing of project proposals, reservation of venues, and program flow; and
2. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Logistics Head:

1. Act as Chairperson of the Logistics Committee;
2. Secure an official list of Central and Local COMELEC members one week after appointment.
3. Assign and supervise subcommittee heads for the following:
 - a. Food
 - i. Provide the Central COMELEC with food during official meetings and activities.
 - ii. Provide food assistance to the Local COMELEC on the date of election.
 - b. Office supplies
 - i. Request for technical equipment from the STePS through the Treasurer's Office.
 - ii. Request for other equipment from the Facilities Management Office.
 - iii. Provide the Central COMELEC with sufficient supplies for the academic year.
 - iv. Distribute allotted supplies to the Local COMELEC.
4. Performs such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

The Public Information Officer shall:

1. Ensure the proper announcement of the activities of the Central COMELEC by means of bulletin boards, advertisements through the Thomasian Cable Television (TOMCAT) and the Varsitarian, teasers and electronic billboard;
2. Layout the design of the information paraphernalia and identification cards; and
3. Perform such other functions as may be required by his office or as the Chairperson of the Central COMELEC may assign.

Section 4. The Chamber of COMELEC Chairpersons. The Chamber of COMELEC Chairpersons shall be composed of all the Local COMELEC Chairpersons from the different faculties, colleges, schools, and institutes of the University of Santo Tomas to have a better and more efficient enforcement of the rules, dissemination of information and suggest rules and processes. They shall be under the direct administration of the Central COMELEC.

Section 4.1. *Primus*. The *Primus* shall be the head of the Chamber, and thus may call upon the other chairpersons to hold caucuses and meetings. All Local COMELEC Chairpersons shall elect from and among its members the *Primus*. The election of such shall be held simultaneously with the election of Central COMELEC officers.

Section 4.2. *Vicar*. The *Vicar* shall be the immediate subordinate of the *Primus*. In the absence of the *Primus*, the *Vicar* shall preside over caucuses and meetings. All Local COMELEC Chairpersons shall elect from and among its members the *Vicar*. The election of the *Vicar* shall be held simultaneously with the election of Central COMELEC officers.

Section 4.3. *Functions of the Chamber*. The functions of the Chamber are as follows:

- a. To enforce the UST Students' Election Code of 2011 (USEC) of the Central COMELEC;
- b. To disseminate the necessary information to all members of their unit;
- c. To suggest rules and processes which are necessary to have peaceful, free, fair, honest and credible elections;
- d. To assist in the conduct of General Assemblies and Election Seminars; and
- e. To promote camaraderie and mutual assistance among all Local COMELEC units.

Section 5. *Office space*. – The LSC concerned shall provide a suitable place as the office of the Local COMELEC unit. The CSC shall likewise provide a suitable place for the office of the Central COMELEC.

ARTICLE III LOCAL COMELEC

Section 1. *Composition and Qualifications of the Local COMELEC*. Regardless of any provisions in the Local Constitution or any law to the contrary, the Local COMELEC of each faculty, college, school, or institute shall be composed of at least one (1) chairperson, eight (8) commissioners and one (1) Representative to the Central COMELEC. The structure of the Local COMELEC Executive Board shall be similar to the Central COMELEC except when the population of the college or faculty reasonably necessitates a larger or smaller number of commissioners.

Members of the COMELEC must be *bona fide* students of their respective faculty, college, school, or institute; enrolled with a total of at least fifteen (15) units excluding P.E. and NSTP, must have a general average of at least 2.50, and 2.75 for the Faculty of Civil Law and Faculty of Medicine and Surgery. They must be of known probity and integrity, must not have been found guilty of violating the rules on general conduct of the University as certified by the dean, principal, or SWDB Coordinator of their respective faculty, college, school, or institute and must not have been a candidate for any elective position in the immediately preceding elections. The position of Chairman shall be elected by and among the members of the COMELEC Unit concerned.

No member of the Local COMELEC shall hold any office in the university during his/ her term. Neither shall he/she be affiliated with any society, association, or organization, directly or indirectly involved in politics, or affiliated or identified with any political party, fraternity, and sorority in the university.

Provided, the Ecclesiastical Faculties, University High School, and Education High School who have their own internal rules, shall be exempt from the above provisions.

Section 2. *Functions of the Local COMELEC*. The Local COMELEC shall be in charge of the administration of all LSC elections within their respective faculty, college, school or institute. They shall likewise administer all class section officers' elections, and all authorized, local referenda and plebiscites, and administer or supervise the election of officers of recognized societies or organizations, when so requested.

Section 3. Powers of the Local COMELEC. The Local COMELEC units shall exercise the following powers:

- (a) Promulgate, enforce, and administer such rules, regulations, and directives as are necessary for the effective discharge of their functions, provided that no rule, regulation, nor decree may be enacted which is contrary to the provisions of this Code;
- (b) Discipline erring members by suspension or dismissal and, after due notice and hearing, for just cause as enumerated in Section 5 of this article;
- (c) Exclude unauthorized persons from those buildings where the polls, or the canvassing of votes are being held;
- (d) Summon the parties to a controversy pending before it and take the testimony of complainant, defendant, or witnesses in any investigation or hearing before it;
- (e) Undertake information campaign on salient features of this Code and help in the dissemination of information, orders, decisions, resolutions, and rules and regulations relative to the forthcoming elections;
- (f) Report to the Central COMELEC violations of the provisions of this Code on the conduct of political campaign and election propaganda;
- (g) Exhort all the registered voters in their respective areas to go to their polling places and cast their votes.

The Local COMELEC shall have exclusive original jurisdiction over all election protests and offenses involving the elections for the LSC officers, recognized societies or organizations and section organization officers.

- (h) Issue directives or orders as are necessary for the ordinary administration of the Local COMELEC;
- (i) Prepare and submit the election report to the Office for Student Affairs and to the appropriate university authorities; and
- (j) Exercise exclusive original jurisdiction over all election protests and offenses involving the elections from the LSC officers, recognized societies or organizations and class officers.

The Local COMELEC shall perform such other functions as may be necessary for the full implementation of this Code, consistent with the requirements of free, fair, honest, and orderly elections.

Section 4. Period to Decide. Any controversy submitted to the Local COMELEC unit shall, after compliance with the requirements of due process, be decided by it within five (5) school days from the submission thereof. No decision or resolution shall be rendered by the Local COMELEC unit either *en banc* or by division unless taken up in a formal session properly convened for the purpose.

Section 5. Security of Tenure. The incumbent and the appointees shall assume their office on the first day of the following school year. They shall enjoy security of tenure and shall continue to serve their office unless they perform any of the following acts:

- (a) Resign;
- (b) File a leave of absence;
- (c) Graduate;

- (d) Be barred from the University;
- (e) Lose probity and integrity;
- (f) Become grossly incapable or grossly inefficient, as found by the Central COMELEC in the case of a Local COMELEC Official, or by the Central Judiciary Board in the case of a Central COMELEC Official; and/or
- (g) Be found guilty of violating the rules on general conduct of the University as certified by the Dean, Director, or Principal and the SWDB Coordinator of the unit concerned.

Section 6. *Recommendees.* With the exception of the Ecclesiastical Faculties, in case of vacancy, resignation, or vacancy in all positions, the Local COMELEC unit with the outgoing members shall submit its list of one (1) recommendee or ten (10) recommendees for every position vacant to their respective Dean, Director or Principal for review of their qualifications and approval of their appointment every first Friday of March;

Provided that, in case the dean, director or principal objected to one or all of the recommendees, the Dean, Director or Principal shall immediately return their names to the Local COMELEC unit concerned with his/her written objection thereto;

Provided further, that, if the Dean, Director or Principal shall not act on the said recommendation within six (6) school days from its submission, the recommendees shall be considered approved by the dean, director or principal; provided further, that notwithstanding the objection made by the dean, director or principal, the Local COMELEC unit concerned may still move for reconsideration. If in case the motion for reconsideration made is denied, new recommendee(s) must be submitted.

The incumbent and the appointees shall assume their office on the first day of the following school year. They shall enjoy security of tenure and shall continue to serve their office unless they resign, file leave of absence, graduate, be debarred from the University, lose probity and integrity, found to be grossly incapable or grossly inefficient by the Central COMELEC in the case Local COMELEC official or by the Judicial Board in the case of the Central COMELEC official, or found guilty of violating the rules on general conduct of the University as certified by the dean, director, or principal and SWDB Coordinator of the Unit concerned.

Article IV RECRUITMENT PROCESS

Section 1. The political parties shall be allowed to recruit year-round.

Section 2. As part of the recruitment process, all previously accredited political parties, provided they are not suspended or their registration is not cancelled, are permitted to put up posters in places, provided:

- a) The same may only be exhibited in places prescribed by the Central COMELEC or Local COMELEC as the case may be.
- b) Before posting, the size, style and content of the poster or information material must be approved by the Central or Local COMELEC as the case may be.

Section 3. For the purposes of approval of posters and information materials and participation in the recruitment fair, all unaccredited political parties are required to submit the following documents to the COMELEC unit concerned five (5) school days prior to the prescribed period of putting up of posters:

- a) Constitution and by-laws;
- b) Declarations of political creed or code of political ethics;
- c) Complete list of officers, as well as members and alumni, if applicable;
- d) Beginning financial statement; and
- e) Such other documents of similar or equivalent character that the respective COMELEC may require.

Section 4. All posters and information materials are allowed to be exhibited for a period of twenty (20) school days from the last day of the recruitment fair prescribed by the Central or Local COMELEC as the case may be.

Section 5. Recruitment posters must not be bigger than eleven inches by eight and five tenths inches (11x8.5 in) or letter sized paper.

Section 6. Room-to-room recruitment in faculties, colleges and schools are strictly prohibited for the whole recruitment process. Distribution of flyers and posting of tarpaulins inside and outside the University shall likewise be prohibited, except during the prescribed days of recruitment fair inside the University.

Section 7. Recruitment posters may be posted on the following places:

- a) For Central political parties, they are allowed to post inside classrooms within the buildings of the faculties, colleges and schools and the University-wide bulletin boards subject to existing rules and policies of the faculty, college, or school concerned and of the University, respectively.
- b) For the Local political parties, they are allowed to post only inside classrooms within the buildings of the faculties, colleges and schools subject to existing rules and policies of the faculty, college, or school concerned.

Section 8. *Recruitment Fair.* The recruitment fair as sanctioned by the Central COMELEC shall be governed by the following rules and regulations:

- a. No on-going classes should be disturbed in any manner;
- b. Classroom posters must not be bigger than eleven (11) inches by eight (8) and five tenths (8.5) inches or letter sized paper. The posters to be put up in the provided panel boards shall not be bigger than eight (8) by seventeen (17) inches or A3 sized;
- c. No streamers, tarpaulins, banners, posters or any form of publication shall be put up or posted in any place other than the provided panel boards by the Commission;
- d. Alumni members of all political parties are prohibited to be physically present during the conduct of the recruitment fair;
- e. No political party or any of the members shall seek, directly or indirectly, any aid of any person or group of persons not enrolled in the university and/or of any organization not duly recognized by the university;
- f. All political parties or members are prohibited to hold motorcades, noise barrage rallies, political rallies on the school grounds and the like or to use sirens, megaphones, public system, "minus-one", and other similar devices producing, or tending to produce, irritating noise which disturbs students, and/or classes, within a radius of ten (10) meters from any building;
- g. No political party or any of its members may solicit support directly or indirectly from any administrator, faculty member, and non-academic employee during the whole recruitment fair.

Section 2. *Recruitment Process.* The political parties shall be allowed to recruit year-round but shall submit an updated list of members by the end of January. The candidates of the political parties shall be limited to the said list.

ARTICLE V
REGISTRATION OF POLITICAL PARTY

Section 1. *Political party.* A political party shall first be duly registered with the appropriate COMELEC to acquire juridical personality, qualify it for subsequent accreditation, and to entitle it to the rights and privileges herein granted to political parties.

All members of a political party must be *bona fide* students of the University and there shall be no alumni or persons not enrolled in the university who may participate, directly or indirectly, in any activity regarding the student's electoral process except alumni of a registered political party whose participation is limited to financial aid and consultations subject to the procedures and limitations prescribed by this Code.

Section 2. *Affiliation between Central and Local Political Parties.*

- a. Only current students whose names appear in the official list of a party's members, duly submitted to the commission and certified with the proper documentation, shall be considered members of the said political party. Should a student who is a member of a local political party like to be a member of a central political party, he should be listed as member of the central political party.
- b. Only students of the college where a local political party is based may be members of the said local political party.
- c. No student, acting as a member of a central political party, may act in behalf of any local political party, and vice versa. Said student may not sign documents or appear in any hearing or in any way represent a political party he is not a member of.
- d. Central political parties shall not be considered an interested party in the disputes of their local political party and thus shall not be entitled to be provided copies of documents by the Commission regarding said disputes, and vice versa.

Section 3. *Conduct of Independent Candidates Acting as a Political Party.*

- a. Independent candidates cannot use campaign materials that have the same or similar colors, or are in any other way distinctively similar to each other.
- b. Independent candidates cannot appear together by name, picture or any such reference, in any electronic medium or in any campaign material such as posters, leaflets, tarpaulins, sample ballots and the like.
- c. Independent candidates cannot co-mingle funds with one another.
- d. Independent candidates cannot prepare or help in preparing campaign paraphernalia, official documents, plans, reports and the like for one another;
- e. Other acts similar to foregoing.

Section 4. *Petition for Registration.* Any political party or coalition of political parties seeking registration shall file a petition before the Legal Division of the respective COMELEC together with two (2) legible copies of the following requirements:

- a. Constitution and By-laws;
- b. Declarations of Political Creed or Code of Political Ethics;
- c. Complete list of officers, members, and alumni;
- d. Beginning financial statement;
- e. Individual requirements;
 1. Clear photocopy of the front and back sides of the student's official UST Identification Card (ID)
 - (a) For a photocopy to be considered clear, all the requisite information in the ID must be legible or identifiable, i.e. picture, name, student number, semester sticker and signature.
 - (b) The student who owns the ID shall sign the photocopy with his name and signature, together with the date that he signs.
 - (c) Should the original ID of the student be unclear, the student must procure a replacement.

- (d) The signature of the student on the photocopy must match the signature shown in the ID. Should there be a clear discrepancy between the two, the student shall personally present and submit a written statement addressed to the Commission, explaining the difference and identifying which signature is valid.

2. Clear photocopy of the student's current registration form with matching signatures on each copy

- (a) For a photocopy to be considered clear, all the requisite information in the registration form must be legible or identifiable such as: student number, name, address, school year, semester, college/department, course/ major, total units, student's signature, validating machine imprint and authorized receiving teller's signature.
- (b) The student who owns the registration form shall sign the photocopy with his name and signature, together with the date that he signs.
- (c) Should the student have lost his registration form or said form is unclear, he shall procure a new registration form from the University.
- (d) If the student is the one who signed in his original registration form and there is a clear discrepancy between this signature and the one shown in the UST ID presented or with the signature that appears in either photocopy, the student shall personally present and submit a written statement addressed to the Commission explaining the difference and identify which signature is valid.

3. Signed statement by the student that certifies that he submits his application for membership in the political party in an informed manner with his full knowledge and consent.

- (a) The Commission shall provide political parties with the statement to be signed by the student.
- (b) The statement shall declare, among others, that the student:
 - 1) Has read the constitution and by-laws of the political party
 - 2) Substantially agrees with the party's ideology or political creed.
 - 3) Has complied with the requirements for membership demanded by the political party's constitution.
 - 4) Agrees to abide by the UST Students' Election Code of 2011(USEC) and other relevant elections laws.
 - 5) Is aware of his rights and obligations as a member of the political party
 - 6) Affirms his desire and qualification to be a member of the political party.
- (c) The student shall sign the form with his name, student number and signature, together with the date that he signs.
- (d) The signature of the student on the form must match all his other signatures in all other documents submitted, Should there be a clear discrepancy between any of them, the student shall personally present and submit a written statement addressed to the Commission explaining the difference and identify which signature is valid.

4. Should a student's documentation be incomplete and/or incorrectly accomplished, the Commission shall inform the concerned political party of the inadequacies within two (2) school days of the submission of said documentation. If the political party fails to submit the needed requirements by the deadline, the student concerned shall be deemed not included in that political party's roster of proposed members.

f. A list of active alumni members of the party with the following information:

- 1. Full name

2. Address
3. Contact number
4. Year graduated from the Faculty/ College/ School
5. A clear copy of an official certification from the University of any of the following: Alumni ID, Transcript of Records or former UST ID.

g. Such other documents of similar or equivalent character that the respective COMELEC may require.

Each set must be enclosed separately inside a long brown envelope. The President, Secretary-General, or any official duly authorized to do so under its Constitution and By-laws shall verify the petition. It must be filed within the prescribed period set by the COMELEC, which in all cases not be later than the second Friday of September.

Section 5. *Petition for Accreditation.* Once duly registered, a political party is qualified for subsequent accreditation without need of another registration provided that complete list of officers, members, and alumni, the beginning financial statement and any amendment in the constitution or code of political ethics and declaration of political creed, if any, shall be submitted within the same period above stated.

Should there be a difference between the party's funds in its beginning financial statement and its funds as stated in the Statement of Contribution and Expenditures that it filed the previous academic year, the party shall submit a proper accounting of the matter, following these requirements:

Section 5.1. *Records of Contributions and Expenditures.* It shall be the duty of every independent candidate, treasurer of the political party and person acting under the authority of such candidate or treasurer to issue a receipt for every contribution received and to obtain and keep a receipt stating the particulars of every expenditure made. Every candidate and treasurer of the party shall keep detailed, full and accurate records of all contributions received and expenditures incurred by him and by those acting under his authority, setting forth therein all information required to be reported.

Every candidate and treasurer of a party shall be responsible for the preservation of the records of contributions and expenditures, together with all the pertinent documents. It must be preserved for at least three years after the holding of the election to which they pertained and for their production in case of inspection by the COMELEC or its duly authorized representative, or upon presentation of a subpoena *duces tecum* duly issued by the COMELEC. Failure of the candidate or treasurer to preserve such records or documents shall be deemed *prima facie* evidence of violation of the provisions of this Code.

Section 5.2. *Statement of Contributions and Expenditures.* Every independent candidate or treasurer of the political party, within twelve (12) school days after the day of the election, shall file in duplicate with the COMELEC concerned the full, true and itemized statement of all contributions and expenditures in connection with the election. Acceptable receipts or invoices must support all expenditure accordingly. The contributions report shall be attached as annexes in the statement.

Section 5.3. *Form and Contents of Statement.* The statement shall be in writing, subscribed and sworn to by the independent candidate or treasurer of the party, shall be completed as of the date next preceding the date of filing and shall set forth in detail the following:

1. The amount of contribution, the date of receipt, and the full name, faculty or college, and exact address of the student or person from whom the contribution was received;
2. The amount of every expenditure, the date thereof, the full name and exact address of the person or establishment to whom payment was made, and the purpose of the expenditure;
3. Any unpaid obligation, its nature and amount, and to whom said obligation is owing; and
4. Such other particulars which the commission may require.

The contributions report and photocopies of the receipts of the expenditures must be attached with the Statement of Contributions and Expenditures.

Section 6. *Effect of Failure to File Statement.* No winning candidate to an elective office shall take his oath. He/She shall not enter upon the duties of his/her office until the political party that nominated the winning candidate or the independent himself has filed the statement required herein within the period prescribe by these rules.

Any political party candidate who violates Section 5.1 of this rule, without just cause, regardless of subsequent compliance, shall suspend the political party or the independent candidate from participating in the subsequent electoral process whether in the Central or Local elections.

Section 7. *Suspension and Cancellation.* Upon verified complaint of any interested person, party, or *motu proprio* by the COMELEC, the registration of any political party or coalition of political parties may be dissolved or suspended after due notice and hearing on any of the grounds mentioned in Sections 8 and 9:

Section 7.1. The following rules on the penalty of suspension shall apply:

- a. The penalty of suspension of registration shall mean that the political party penalized shall continue to have juridical personality but has lost the right to hold University-sanctioned activities such as fora, fund-raising projects, information campaigns and the like, and to participate in the electoral exercise by fielding candidates.
- b. A party shall be suspended for a period of one (1) academic year, which shall begin from the date of the final judgment imposing the penalty of suspension, provided, that the party shall be barred from participating in no more than one (1) election, provided further that if a party is suspended during an election period, said party shall be suspended from participating in the current election period as well as the succeeding one.
- c. During the period of suspension, the party retains its reportorial responsibilities, such as submitting its Statement of Contributions and Expenses, among others. Should a suspended party fail to apply for reaccreditation within the period set by the Commission, it shall be taken as the party's lack of interest to continue its existence and thus be a ground for the cancellation of the party's registration.
- d. The students' right to resign from a political party and form a new one is recognized. However, during the period of suspension, no new political party shall be registered that has a clear tendency to be associated with the suspended party, such as, but not limited to, the following:
 1. The new party has the same or mostly the same party colors as the suspended party
 2. The name of the new party is a recognizable variation or play on the name of the suspended party
 3. Most of the officers of the new party were officers of the suspended party
 4. Most of the members of the new party were members of the suspended party
 5. Most of the affiliates of the new party were affiliates of the suspended party
 6. The new party holds its headquarters in the same area or roughly the same area as the headquarters of the suspended party
 7. The constitution of the new party is the same as or almost the same as the constitution of the suspended party

8. The slogan of the new party is the same as or very similar to the slogan of the suspended party
- e. A student may belong to at most one (1) Central political party and one (1) local political party at the same time.
- f. Should the membership of a suspended party go below that required by Article V, Section 1.1 of the USEC for Central political parties or Article V, Section 1.2 of the USEC for Local political parties due to resignations among its ranks or for any other reason, this shall be a ground for the cancellation of the party's registration.
- g. Any further violation committed by a currently suspended political party shall be a ground for the cancellation of the party's registration.
- h. At the end of the period of suspension, the Commission shall inform the party in writing that the party's right to hold University-sanctioned activities and to participate in elections is being restored to it.

Section 7.2. The following rules on the penalty of cancellation shall apply:

- a. The penalty of cancellation of registration means that a political party loses its juridical personality, and shall thereby be permanently disqualified from participating in any electoral process and from conducting any University-sanctioned activity.
- b. Upon the rendering of a final judgment cancelling the registration of the party, the party shall submit a list of its officers, members and alumni, together with a Statement of Contributions and Expenses accurate up to the time of submission. Moreover, the party shall submit the records that Rule III, Section 7 of the Implementing Rules and Regulations of the SEC (IRR) requires parties to preserve, in addition to the certificate of registration given to it by the Commission.
- c. Should the party, after its financial obligations have been settled, have funds leftover at the time of the cancellation of its registration, it shall endeavor to return the money to those who contributed it as stated in its Statement of Contributions and Expenses, or distribute it equally or equitably among its members, or distribute the money in a similarly just manner. The party shall inform the Commission of the method it chooses.
- d. Students who fail to discharge these obligations shall be considered to have committed an election offense as stated in Article XII, Section 1 (a) 7 of the USEC and thus shall be recommended by the Commission to the relevant Student Welfare and Development Board concerned for appropriate disciplinary measures and shall be barred from participating in the next scheduled election.
- e. Should the registration of a party be cancelled during the election period, the candidates it has fielded for the current election shall be disqualified, provided that said candidates were aware of and consented to or participated in the act that caused the cancellation of the party's registration.
- f. The proclamation of winning candidates who are members of a political party that is undergoing hearings wherein its registration may be cancelled shall be subject to the resolution of the hearings. Should the party's registration be cancelled, the winning candidates shall be disqualified from assuming office and the positions aspired for shall be declared vacant, provided that said candidates were aware of and consented to or participated in the act that caused the cancellation of the party's registration.

Section 8. Grounds for Suspension. Upon verified complaint of any interested person, party, or *motu proprio* by the COMELEC, the registration of any political party or coalition of political parties may be suspended after due notice and hearing on the following grounds:

- a. Acceptance by the political party, coalition, or any of its candidates, of financial contributions or any aid of any person or groups of persons not enrolled in the university and/or of any organization not duly recognized by the University;
- b. Employing violence or other unlawful means in refusing to adhere to or uphold the CSC or Local Constitution;
- c. Failure to file the Statement of Contributions and Expenditures within twelve (12) school days after the previous election;
- d. Failure of their candidates to obtain at least five (5) per centum of the votes cast in the last two preceding elections;
- e. All acts analogous to the foregoing.

Section 9. Grounds for Cancellation. Upon verified complaint of any interested person, party, or *motu proprio* by the COMELEC, the registration of any political party or coalition of political parties may be cancelled after due notice and hearing on the following grounds:

- a) Violation of the USEC in relation to the Student's Handbook and other laws, rules or regulations relating to elections, plebiscites, referenda, or initiatives;
- b) Untruthful statements in its petition for registration and Statement of Contributions and Expenditures;
- c) Employing violence or other unlawful means in refusing to adhere to or uphold the CSC or Local Constitution;
- d) Failure to field official candidates in the last two preceding elections;
- e) Any other act involving moral turpitude.

Section 10. Source of Funds. All funds of a political party must come from the members' contribution, alumni members' contribution or any activity for raising funds that maybe sanctioned by the OSA and the Central COMELEC in all cases, the political party must state the true name of the contributor. Funds for independent candidates must come from their individual supporters only and shall not co-mingle funds with other independent candidates.

All fund sourcing, aid or contribution of whatever form or nature from persons not enrolled in the University, or persons, organizations, or companies not recognized by the University for the purposes of influencing the results of the election shall be strictly prohibited.

Section 11. Prohibited Raising of Funds. It shall be unlawful for any person, political party, independent candidate, or student to hold lotteries, games, bingo, or other similar activities for purposes of raising funds for an election campaign or for the support of any candidate.

All fund raising shall be with due authorization from the OSA and the Central COMELEC. However, fund raising within the election period is strictly prohibited.

Section 12. Authorized Expenses of Candidates and Political Parties. The amount that a candidate and registered political party may spend for an election campaign shall be as follows:

Section 12.1. For political parties in the Central Student Council, two pesos (Php 2.00) for every student enrolled in the University, the total population of which will be determined by the Central COMELEC.

Section 12.2. For political parties in the Local Student Councils, four pesos (Php 4.00) for every student from the faculty, college, school or institute, the population of which will be determined by the COMELEC unit concerned.

Section 12.3. For Independent Candidates for the Central Student Council, fifty centavos (Php0.50) for every student enrolled in the University, and for the Local Student Council, one peso (Php1.00) for every student from the faculty, college, school or institute, the population of which will be determined by the COMELEC unit concerned.

Section 13. *System of Registration.* The Central COMELEC shall provide a system for registration of electoral and political parties and regulation of expenditures, to accord them recognition, privileges, benefits and after due process and hearing to cancel the registration in case of non-compliance.

ARTICLE VI

ELIGIBILITY OF CANDIDATES AND CERTIFICATES OF CANDIDACY

Section 1. *Qualifications of the Central Executive Board Officers. (See ARTICLE VIII. Qualifications of the Executive Board Officers – 2011 CSC Constitution and By-Laws)*

Section 1. A candidate of any position of the Executive board shall possess the following qualifications on the day of the elections:

- a. currently enrolled with a total of at least 15 units as may be certified by their respective faculties/colleges/schools;
- b. having a general weighted average of at least 2.50 or its equivalent, and 2.75 or its equivalent for the Faculty of Civil Law and Faculty of Medicine and Surgery;
- c. must not have failed or dropped any subject throughout his entire stay in the degree or program that he is pursuing on the time of the elections, excluding P.E. and NSTP. Provided, that in case of a shifter, if the units he earned from his previous degree or program was credited in his current degree or program, shall be covered by the same prohibition. He shall be deemed as ineligible to run in any of the position in the Central Executive should he failed or dropped any subject that he is pursuing before in his original degree and program. A transferee shall be considered as shifter also for purposes of this provision; and
- d. having continuous residency in the University for at least seven (7) months immediately preceding the elections.

Section 1. Par. B shall be deemed as a continuing requirement for office.

In addition to the qualifications provided herein, only the incumbent officers of the Central or Local Student Council Executive Board are eligible to run as President or Vice- President of the CSC.

Section 2. No officer of the Executive Board shall, during his tenure, hold any other position in any capacity in any recognized student organization in the University.

Section 3. No graduating student shall be allowed to run for any position of the Executive Board.

Section 2. *Qualifications of the Local Student Council Executive Board Officers.* In the absence of any provision in the constitution of the LSC concerned, a candidate for any position in the LSC must comply with the same requirements for qualification prescribed for the CSC Executive Board (Art. VIII of the 2011 CSC Constitution and By-Laws).

The president-elect of the LSC is deemed to have automatically resigned from any elective and non-elective position being held by him/her in any organization upon his proclamation by the Local COMELEC.

Section 3. Qualifications of Section Officers. A candidate for any section must have the following qualifications at the time of the filing of his/her candidacy:

1. He/she must be a regular member of the section; and
2. He/she must not have failed in any subject in the immediately preceding semester, except for freshmen during their first semester.

Section 4. Candidates of Special Elections. The above qualifications of candidates does not apply to candidates running for special elections where void votes obtained the highest number of votes, provided they shall possess the said qualifications prior to the original election.

Section 5. Nuisance Candidates. The COMELEC unit concerned may, *motu proprio*, or upon a verified petition of any interested party, refuse to give due course to or cancel a certificate of candidacy if the certificate of candidacy is filed under any of the following circumstances or with the following motives:

- a) To put the election process in mockery or disrepute;
- b) To cause confusion among the voters by the similarity of the names of the registered candidates; or
- c) Other circumstances or acts which clearly demonstrate that the candidate has no *bona fide* intention to run for the office for which the certificate of candidacy has been filed and thus prevent a faithful determination of the true will of the electorate.

Section 6. Certificate of Candidacy. – No person shall be eligible for any elective office unless he/she files in duplicate a sworn certificate of candidacy before the appropriate COMELEC unit, within the periods fixed herein.

A person who has filed a certificate of candidacy may, prior to the election, withdraw the same submitting to the appropriate COMELEC unit, a written declaration of his/her withdrawal under oath.

Section 6.1. Venue and Date.

- a. For the CSC Executive Board candidates, the certificates of candidacy must be filed before the Central COMELEC not later than sixteen (16) school days before the third Friday of February.
- b. For the Local Student Council candidates, the certificates of candidacy must be filed before the Local COMELEC not later than ten (10) school days before the third Friday of February.

Section 6.2. Contents. – The certificate of candidacy shall state the following:

- a. That the person is announcing his/her candidacy for the office stated therein: that he/she is eligible for the said office;
- b. That the person belongs to a political party to which the candidate belongs;
- c. His/her date of birth;
- d. Residence and/or contact number for all election purposes;
- e. Official e-mail address;
- f. That he/she will support and defend the constitution of his/her faculty, college, school, or institute or the CSC Constitution, as the case maybe;
- g. That he/she will obey the laws, legal orders, and decrees promulgated by the constituted authorities;
- h. That the obligation imposed by his/her oath is assumed voluntarily, without mental reservation or purpose of evasion;
- i. That the facts stated in the certificate of candidacy are true to the best of his/her knowledge; and

The person filing a certificate of candidacy shall also affix twenty-two (22) copies for central candidates and at least three (3) copies for local candidates of latest passport-sized black and white photograph, transcript of records with general weighted average certified by the registrar, certificate of good moral character from the Office for Student Affairs for Central Student Council candidates and from the Dean's Office for Local Student Council candidates, photocopy of validated school identification card (ID), photocopy of current registration form, and a copy of his/her program of government, if he so desires.

The COMELEC unit involved shall have the power to require such other annexes to the certificate of candidacy as it may deem appropriate, provided that such requirements are not unduly oppressive or unreasonable.

Section 7. Announcement of the official list of candidates. – The Central COMELEC shall post the official list of candidates for the CSC Executive Board election two (2) school days after the deadline for the filing of candidacy, and shall furnish the Rector, the Assistant to the Rector for Student Affairs, and the deans, regents, and principals of all colleges, faculties, institutes, and schools with a copy of the official list.

The Local COMELEC unit shall post the official list of candidates for the LSC election, two school days after the deadline for the filing of certificates of candidacy and shall furnish the dean and the regent with a copy of such list.

The official list of candidates for CSC Executive Board election shall be posted in at least three (3) conspicuous locations in the building of each college, faculty, institute, or school; the official list of candidates for the LSC election shall be posted in at least three (3) conspicuous locations in the building of that faculty, college, school, institute.

Section 8. Qualification Contest. The following are the procedure for contesting the eligibility of candidates:

- a. All qualification contests involving CSC candidates shall be filed before the Legal Officer of the Central COMELEC. All qualification contests involving LSC candidates shall be filed before the Legal Officer of the Local COMELEC concerned. The Legal Division may dismiss outright the complaint when it is deemed legally baseless, or on its face or essentially is without merit. However, when the Legal Division finds it otherwise, the officer shall refer the complaint before the Central COMELEC *En Banc* for proper deliberation. The Central COMELEC may declare a candidate ineligible to run for a CSC position in a resolution stating therein its legal ground and appreciation of facts within the prescribed period.
- b. In cases where to settle an issue requires voting, the proposal obtaining majority votes of the representatives present at a meeting called for that matter shall prevail. The Central COMELEC shall entertain no appeal on a decision by a Local COMELEC *En Banc* regarding qualification contest of a LSC candidate except on questions of law provided under the UST Students' Election Code of 2011 or the UST Student Government Constitution. The findings of fact by the Local COMELEC shall be respected unless there is a showing of arbitrariness or whimsical error on the part of the Local COMELEC.

Section 8.1. Contents of Complaint. The complaint must contain the following:

- a. The name of the candidate or political party complained of;
- b. The name of the person or political party assailing the eligibility of a candidate;
- c. The legal ground if filing the complaint; and
- d. The specific facts to support the allegations of lack of qualification of the assailed candidate.
- e. The complaint must sign and execute it under oath.

All oaths in relation with filing a complaint must be sworn before a member of the Legal Division of the Central COMELEC or a Legal Officer of the COMELEC concerned, otherwise, it shall not be given due course except in case where interest of justice so requires.

Section 8.2. *Receiving Official.* No person other than any member of the Legal Division or an authorized COMELEC officer, or in the absence thereof, the designated personnel from the Office of Student Affairs, may receive any qualification contest except in cases of unreasonable delay on the part of the COMELEC. In such case, it is deemed filed by leaving a copy of the complaint to any person with authority at the OSA or at the place where the COMELEC holds office.

Section 8.3. *Period to file.* The Central COMELEC shall prescribe a deadline for the filing of the application for a certificate of candidacy. The Legal Officer shall not entertain any person filing beyond the prescribed period. The person concerned may however file a motion for reconsideration before the Adjudicatory Board stating their valid reason for failure to comply with the deadline.

Section 8.4 *Period to Decide.* The Adjudicatory board shall decide the motion for reconsideration within a period not exceeding five (5) school days from the day that the answer to the complaint is filed unless a longer period is prescribed by the Adjudicatory Board in a resolution.

ARTICLE VII

CAMPAIGN AND ELECTION PROPAGANDA

Section 1. *Duration of campaign* — Election campaign period for the CSC Executive Board shall be limited to twelve (12) school days which shall commence the day after the release of the official list of candidates.

The election campaign period for the LSC shall be limited to six (6) school days which shall commence the day after the release of the official list of candidates.

However, under special circumstances when it is deemed appropriate and applicable to the local unit, the local COMELEC, upon written notice to the Central COMELEC, may prescribe a different period for the campaign. Provided, it shall not be in conflict with any accredited school activity or Central COMELEC activity; provided further, there shall be no instance where the Local COMELEC may arbitrarily shorten the above prescribed campaign period.

Section 1.1. *No-Campaign Day.* The school day immediately preceding the date of election, or any period as maybe prescribed by the COMELEC is deemed as the no-campaign period where campaigning by a party and/or by a candidate is strictly prohibited.

Section 1.2. *Non-Campaign Period.* No person shall campaign on the first day of the second semester of the academic year until the campaign period prescribed by the COMELEC unit.

Section 1.3. *Schedule set by political parties and independent candidates.* The political parties and independent candidates shall set the time of their campaign in the different institutes, schools, colleges, and faculties. The schedule shall be submitted to the COMELEC the day after the release of the official list of candidates. The COMELEC unit concerned shall be notified at least five (5) hours, excluding the time period between twelve o'clock midnight and six o'clock in the morning, before any change is made to the submitted schedule.

Section 1.4. *Mandatory Debate.* The COMELEC unit concerned shall organize a debate among candidates during the campaign period; provided, that all candidates must be properly informed of the schedule, rules, or mechanics of such debate.

Section 2. *Maximum period for room-to-room campaign.* Political parties may campaign for a maximum of fifteen (15) minutes in the room-to-room campaigns while independent candidates may only campaign for a maximum of three (3) minutes. An extension may be granted to the campaigning candidates by the professors concerned but not more than ten (10) minutes and two (2) minutes, respectively.

Section 3. *Campaign Managers.* Each political party and every independent candidate is entitled to at most three (3) campaign managers and one (1) campaign manager, respectively, to act as their behalf during the campaign period and shall properly communicate with the COMELEC unit concerned regarding campaign requirements, provided that every campaign manager of a political party should be a member of the said party. Independent candidates are prohibited from having the same campaign manager as other candidates.

A campaign manager being the agent of his respective political party or independent candidate, his acts are therefore the acts of the party or the independent candidate.

Section 4. *List of Campaign Managers.* The list of campaign managers for each political party and independent candidate shall be submitted to the concerned COMELEC unit not later than the deadline for the filing of the application for a certificate of candidacy, together with their passport-sized photograph and certificate of good moral character from their respective faculty, college, school or institute.

Section 5. *Allowable Campaign Materials.* The following campaign materials shall be allowed subject to the supervision and approval of the COMELEC:

Section 5.1 *Streamers or Tarpaulin*

5.1.1 For a political party, each streamer or tarpaulin shall not be more than three (3) meters long and one (1) meter in height. For an independent candidate, each streamer or tarpaulin shall not be more than one and a half (1 ½) meters long and half (½) meter in height;

5.1.2 The COMELEC unit concerned shall designate the place where such streamer or tarpaulin can be put up. Moreover, no more than one streamer or tarpaulin per party or per independent candidate shall be put up in each building.

Section 5.2 *Posters*

5.2.1 Posters for a political party shall not be bigger than eleven (11) inches by seventeen (17) inches or A3 size paper. Posters for an independent candidate or individual candidate shall not be larger than eight and a half (8 ½) by eleven (11) inches;

5.2.2 The COMELEC unit concerned shall designate the place where such posters can be put up, provided that glue, paste, or any other such adhesive shall not be used in the posting.

Section 5.3 Sample ballots, printed handbills, and other similar materials for the purpose of promoting the candidates of a duly accredited political party or of independent candidates.

In all cases, every streamer, tarpaulin, or poster shall include all the candidates running under a political party. There shall be no individual streamer or poster except in the case of posters for an independent candidate.

Any material drawn or printed containing the name of a candidate or a political party, or any name, symbol, sign, phrase, or word, which a candidate or political party is known, even without the word vote, shall be deemed a campaign material and should not be used or distributed before the campaign period.

Section 6. Campaign Offenses. The following are prohibited acts during the election campaign:

- a. To distribute clothing materials, such as but not limited to shirts, jackets, vests, blazers, as campaign paraphernalia. However, officers of political parties, candidates and their campaign managers may use aforementioned campaign paraphernalia.
- b. To erect, put up, or make use of any billboard, self-adhesive sticker;
- c. To distribute as campaign paraphernalia, lighters, cigarettes, obscene materials, food, alcoholic beverages, and other things which are prohibited by law;
- d. To seek, directly or indirectly, the aid of any person or group of persons not enrolled in the university, except Thomasian Alumni, and/or of any organization not duly recognized by the university;
- e. To remove, destroy, obliterate, on in any manner deface or tamper with, or prevent the distribution of lawful election materials during the campaign period;
- f. To hold parades, motorcades, noise barrage rallies, political rallies within the school premises and the like;
- g. To use sirens, megaphones, public address systems, and other similar devices producing, or tending to produce, irritating noise which disturbs students, and/or classes, within a radius of ten (10) meters from any building; and
- h. Any person who uses under any guise whatsoever, directly or indirectly CSC or LSC funds for any election campaign or partisan political activity;
- i. To print, publish, post or distribute any poster, pamphlet, circular, handbill, or any printed matter, urging voters not to vote or to vote against any particular candidate or political party;
- j. To set up or make use of banners, posters, streamers outside the vicinity of the University;
- k. To campaign, set up posters or streamers, or any election paraphernalia and other analogous acts outside the campaign period set by the COMELEC;
- l. To set up or put up posters, banners, streamers or any election paraphernalia in areas prohibited by the University or by the COMELEC;
- m. To engage in any form of election campaign or partisan political activity after the election period set by the COMELEC;
- n. To solicit support directly or indirectly from any administrator, faculty member and non-academic employee during the whole election period;
- o. Failure to remove campaign materials a day before the election; and/or
- p. To directly or indirectly, threaten, intimidate or actually cause inflicts or produce any violence, injury, punishment or damage upon any election official or election employee in the performance of his election functions or duties;
- q. Other acts similar to the foregoing.

Section 7. Special Campaign Offenses

- a. ***Independent candidates acting as a political party***
 1. Independent candidates cannot use campaign materials that have the same or similar colors, or are in any other way distinctively similar to each other.
 2. Independent candidates cannot appear together by name, picture or any such reference, in any electronic medium or in any campaign material such as posters, leaflets, tarpaulins, sample ballots and the like.
 3. Independent candidates cannot co-mingle funds with one another.
 4. Independent candidates cannot prepare or help in preparing campaign paraphernalia, official documents, plans, reports and the like for one another;
 5. Other acts similar to foregoing.

b. ***Independent candidates campaigning as a political party***

1. Political parties may campaign for a maximum of fifteen (15) minutes in the room-to-room campaigns while Independent Candidates may only campaign for a maximum of three (3) minutes. An extension may be granted to the campaigning candidates by the professor/s concerned but not more than ten (10) minutes and two (2) minutes, respectively.
2. Candidates running as independent should not be campaigning as a group or as an organized political party.
3. Independent candidates not affiliated to a certain political party and the like may not be endorsed and/or campaigned in any manner by the latter.
4. Any campaign itinerary shall be approved by the Central COMELEC (local COMELEC Unit concerned).
5. Other acts similar to the foregoing are strictly prohibited. Violation of these rules, after due notice and hearing, shall be sanctioned as having committed a campaign offense which shall be penalized under the USEC.

c. ***Incumbent Student Council officers who are members of a registered political party***

1. An officer shall not, in any way, use the powers of his office to campaign for any candidate, including himself.
2. An officer shall not promote, publicize or advertise his party, either verbally, graphically, by gestures, by his clothes, accessories or materials, or in any manner, in the course of the performance of his duties in any official or unofficial event, meeting or gathering.
3. An officer shall have the right to promote, publicize and support his party in his personal capacity as a student member of the party.
4. Resources of the student government, such as funds, bulletin boards, council rooms, office supplies, and the like, may not be used to promote or support any candidate or political party.
5. An officer may not deprive a student any service the officer provides in the course of his duties for reason of the student's affiliation with any political party, nor shall he grant special privileges to any student for the same reason.

Section 8. Electronic Campaign.

- a. Electronic media shall include all forms of technology that communicate to people using equipment that depend primarily on a continuous supply of power, whether solar, electric or otherwise in order to function, such as computers, cellular phones, and other such devices. This shall include all software, such as websites, digital photographs, and the like.
- b. All applicable rules governing the conduct of campaign as stated in the UST Students' Election Code, Student Handbook, Central Student Council and respective Local Student Council Constitutions, and all election laws shall apply fully – or if the case warrants, analogously – to electronic campaigns.
- c. It shall be the duty of candidates and political parties to inform the Legal Division of the Central COMELEC (or of the local COMELEC, in the case of local political parties and candidates), regarding the type and manner of any electronic campaign for approval before conducting such. They shall provide the COMELEC with a duly certified written and/or graphical copy of all media used in such campaigns for reference, provided that in the case of audio material, the closest topographical representation of its words and sounds shall be provided.
- d. The COMELEC shall have the power to order, after due notice and hearing, the cessation of the use of any electronic media for the campaign of any candidate, such as blocking or shutting down websites, deleting profiles, pictures and programs, and the like should the said electronic media violate any law.

- e. In all cases, the COMELEC shall endeavor to ascertain the identity of the propagators of the use of any electronic media used for campaigning. Should this not be possible, and the nature, content, appearance or any other characteristic of an electronic medium reasonably leads one to associate it with a political party and/or candidate/s, the COMELEC may require the said party and/or candidate/s to issue both written and digital announcements to the public disclaiming the ownership of the said electronic medium, as well as any immoral, scandalous, indecent or inaccurate message it may contain.
- f. Electronic media used by political parties outside the campaign period shall be covered by these rules, provided that said media are used to disseminate messages to the students (text messaging, email, etc.) or are accessible to the student body at large (websites, profiles, etc.) and not restricted to members of the political party.
- g. Pursuant to Article VII, Section 6 (o) of the USEC, no electronic media shall be used to campaign for any candidate during the day before elections. Websites, profiles and other such media accessible to the general public should be made inaccessible to the same or be restricted to party members only.
- h. In any adjudication whether an act shall be considered campaigning or not, a distinction shall be made between a political party encouraging students to support it on one hand, and exhorting student to vote for specific candidates or for members of its party on the other. The former shall be a legitimate exercise of the right of a political party to expound on its ideology and achievements in order to propagate itself, while the latter shall be a campaign offense should it occur outside the campaign period.

Section 9. Penalties for Campaign Offenses. Any person found in violation of the provisions of the USEC, and other rules that the Central COMELEC may prescribe shall be subjected to the following penalties:

- a) First offense – Reprimand with stern warning that repetition of the offense will accord heavier penalty.
- b) Second offense – Suspension or prohibition of the right to campaign for several hours, day or days until the end of the campaign period as maybe determined by the COMELEC.
- c) Third offense – Temporary or Permanent Disqualification from office and the Central COMELEC shall recommend the suspension of the student as sanctioned by the Student Handbook.

Provided, the second offense shall mean the commission of another or of the same campaign offense and the third offense, the commission of three different or the same campaign offenses. However, if the second offense is done during the last day of campaign, the penalty imposed shall be temporary or permanent disqualification. In case the offender is a member or officer of a political party, the proper penalty is from temporary or permanent prohibition to participate in any electoral process or cancellation of registration.

Section 10. COMELEC Information Bulletin. The COMELEC shall print and supervise the dissemination of information which shall be known as "COMELEC Bulletin." This shall be of such size as to adequately contain the following:

- a. Information regarding important dates of the elections, announcements, relevant laws, rules and regulation regarding elections;
- b. Black and white pictures, short personal information, and program of government of the political party or of an independent candidate.

Said bulletin shall be disseminated to the voters through any form of publication that the COMLEC may prescribe. The printing of the names of the different candidates with their short information must be in alphabetical order by last name basis irrespective of party affiliation.

Section 11. Common Poster Area. The COMELEC unit concerned shall provide or designate common poster areas for political parties and independent candidates subject to the following limitations:

- a. Bulletin Board
 1. University-wide bulletin boards subject to existing rules and policies of the university
 2. College bulletin boards subject to existing rules and policies of the college concerned.
 3. The COMELEC unit concerned shall provide for at least one (1) bulletin board for the Central elections and at least one (1) bulletin board for the local elections for the utilization of the political parties during the election period. Provided, that the COMELEC unit concerned shall equally divide the spaces for all political parties and independent candidates.
- b. On-line Campaigning
 1. Campaigning in social networking sites, putting up web pages or web sites for the purpose of campaigning as defined under this code, and other acts similar to the foregoing is not prohibited. However, it shall still be regulated by the rules prescribed by the COMELEC and rules under this Code.
 2. Candidates are required to submit to the COMELEC the Uniform Resource Locator (URL) of the web pages wherein the candidates themselves or their representatives are campaigning. Failure to do so shall constitute as a campaign offense and shall be penalized accordingly.
- c. Other common poster areas may be set up by the COMELEC upon their discretion or upon the request of any political party subject to the approval of the COMELEC unit concerned.
- d. The political party concerned with the assistance of the Central COMELEC or the COMELEC unit concerned must remove all posters, election materials or paraphernalia not within the designated area or in violation of campaign prohibitions.

ARTICLE VIII

WATCHERS

Section 1. Official watchers of candidates. Each political party and every independent candidate shall be entitled to one authorized watcher, provided that the watcher has submitted the proper and complete requirements or documents to the Local or Central COMELEC concerned. No person shall be appointed as a watcher unless he/she is a *bona fide* student of the university and is of known integrity and probity.

Section 2. Rights and duties of watchers. The watcher shall have the right to be present at, and take note of, all the proceedings of the board of canvassers, to read the election returns without touching them, to file protests against any irregularity in the election returns submitted, and to obtain from the board of canvassers a resolution thereon.

Other rights and duties of watchers shall be those provided by the appropriate COMELEC unit, taking into consideration the particular circumstances of each election; provided that the primordial duty of the watcher to ensure the honest conduct of the election exercise and must not be to frustrate the process.

Section 3. Watcher's list. The list of watchers of each political party or independent candidate shall be submitted to the appropriate COMELEC unit ten (10) school days before the scheduled election, together with their certificate of good moral character from their respective faculty, college, school, or institute.

Section 4. *When Independent Candidate not entitled to Watchers in every polling place.* Independent candidates running for different positions, as if running for a political party, after notice and hearing, shall forfeit their individual right for watchers in every polling place.

ARTICLE IX AUTOMATED ELECTIONS AND CANVASSING

Section 1. *Voters' lists.* Each Local COMELEC unit shall prepare a voters' list based on the enrollment list provided by the STEPS. This shall be composed of names of *bona fide* students enrolled for the semester during which an election is set to be held.

Section 2. *Who shall be qualified to vote.* All *bona fide* students of the University of Santo Tomas shall be qualified to vote (1) in the CSC election; (2) in all university-wide referenda and plebiscites; (3) in their respective local student council election; and/or (4) in all local referenda and plebiscites.

Section 3. *Polling place and room-to-room election.* The COMELEC shall establish all polling places.

The Local COMELEC unit of each college, faculty, institute, or school shall establish and maintain polling place or precinct as it deems necessary to ensure an orderly and efficient election. This polling place or precinct shall be used for the LSC elections of the college, faculty, institute, or school wherein they are situated, as well as for the CSC election.

The COMELEC unit concerned shall prescribe a room-to-room election, as it deems necessary.

Section 4. *Board of Election Inspectors.* Each polling place shall be under the direct control and supervision of a Board of Election Inspectors which shall be composed of four (4) commissioners and the chairperson of the COMELEC unit concerned. The Board of Election Inspectors shall have the following powers and functions:

- a. To facilitate the election in their respective polling places;
- b. To assure the holding of the same in a free, orderly, and honest manner; and
- c. To perform such other functions as this Code, or the COMELEC, may prescribe.

Section 5. *Composition and appointment of the Board of Election Inspectors.* The Board of Election Inspectors shall be appointed by the appropriate COMELEC unit two days before the election and the said board shall be composed of a chairperson and a poll clerk, both of whom shall be deputies of the COMELEC, and a representative from each accredited political party.

The COMELEC shall choose the representative of each political party or independent candidate from a list given to the latter by the political party, together with their certificate of good moral character from the OSA. A substitute shall also be chosen who shall take place of the representative of every party or independent candidate should he/she be, at any time, relieved of his/her office.

No person shall be appointed to the Board of Election Inspectors unless he/she is a *bona fide* student of the University of Santo Tomas, is of known probity and integrity.

Section 6. *Voting Hours.* The casting of votes shall start at eight o'clock in the morning and shall end at five o'clock in the afternoon, except in those faculties, colleges, schools, or institutes where the class hours dictate a different voting schedule, as determined by the appropriate COMELEC unit.

For faculties, colleges, school, or institutes having a different voting schedule as determined by the COMELEC unit, the voting schedule shall be determined and fixed at least seven school days before the date of the scheduled elections by posting copies thereof in at least three (3) conspicuous locations in the building where the elections are to be held.

Section 7. Voting Procedure. The COMELEC, together with the Educational Technology Center, shall prescribe a voting procedure. The procedure shall be made known to the voters at least seven (7) school days before the date of the scheduled elections by posting copies thereof in at least six (6) conspicuous places for the Central COMELEC and three (3) conspicuous places for Local COMELEC in the building where the elections are to be held.

Section 8. Electronic Voting. The Central COMELEC may prescribe or approve voting procedure using electronic technology provided it shall follow the following guidelines:

1. The procedure shall be made known to registered political parties thirty (30) days before the effectivity of the procedure, provided that local COMELEC unit must obtain the approval of the Central COMELEC after it find the procedure satisfactory.
2. The procedure must contain a system of electronic registration and other procedures necessary to ensure an efficient, foul-free, and secured result of election.
3. The on-line result must not be shown to any person except upon the entry of three (3) distinct and valid passwords from three (3) persons, namely the comptroller or the person in charge with the Information Technology procedure, the chairperson of the COMELEC unit concerned, and the COMELEC adviser, in the presence of the representative of the registered political parties.
4. In all cases, the procedure must ensure a just, orderly, clean and honest election.

Section 9. Conduct of canvass. – The rules for the conduct of canvassing of votes shall be prescribed solely by the Central COMELEC and the rules herein shall be suppletory in nature.

Section 10. Local Board of Canvassers. – There shall be a Board of Canvassers of each college, faculty, institute, or school which shall be composed of the chairperson of the local unit, as the chairperson, the four (4) commissioners from the same COMELEC unit, and a representative from each party and independent candidate, as members.

Section 11. Central Board of Canvassers. – The Board of Canvassers of the Central COMELEC shall be composed of the chairperson of the Central COMELEC, as the chairperson, the commissioners of the Central COMELEC, and a representative from each party and independent candidate, as members.

Section 12. Supervision and control over Board of Canvassers. – The COMELEC unit concerned shall have direct control and supervision over the respective Boards of Canvassers.

ARTICLE X
MANUAL ELECTIONS

Section 1. *Manual Elections.* The provisions of this article shall only be applicable in special cases where automated elections cannot be conducted due to technical difficulties and the like.

Section 2. *Voters' lists.* Each Local COMELEC unit shall prepare a voters' list based on the enrollment list of their respective faculties, colleges, schools, or institutes for the semester during which an election is set to be held.

Section 3. *Who shall be qualified to vote.* All *bona fide* students of the University of Santo Tomas shall be qualified to vote (1) in the CSC election; (2) in all university-wide referenda and plebiscites; (3) in their respective local student council election; (4) and/or in all local referenda and plebiscites.

Section 4. *Polling place and room-to-room election.* The COMELEC shall establish all polling places.

The Local COMELEC unit of each college, faculty, institute, or school shall establish and maintain as many polling places or precinct as it deems necessary to ensure an orderly and efficient election, provided, that no polling precinct must be assigned with more than three hundred (300) voters. These polling places or precinct shall be used for the LSC elections of the college, faculty, institute, or school wherein they are situated, as well as for the CSC election. The COMELEC unit concerned shall prescribe a room-to-room election, as it deems necessary.

Section 5. *Contents of the ballot.* The ballot shall contain:

- a. The printed names of all the candidates, under the position to which they aspire, followed by their party affiliation;
- b. A printed box appearing before the candidate's name;
- c. A serial number; and
- d. Printed instructions on how to accomplish the ballot.

Section 6. *Ballot boxes.* The Central COMELEC shall prescribe the ballot boxes where the voters shall deposit their ballots. The keys to these ballot boxes shall be in the exclusive control of the representative to the Central COMELEC, the Local COMELEC chairperson, and the dean, regent, or principal of the college, faculty, institute, or school or the latter's authorized representative.

Each college, faculty, institute, or school shall be assigned a certain number of ballot boxes and shall be responsible for the said ballot boxes. The college, faculty, institute, or school shall be accountable for any form of vandalism and/or destruction of the ballot boxes, and shall be obliged to replace the same unless the damage is not imputable to them.

Section 7. *Counting of Votes.* As soon as the voting is finished, the Board of Election Inspectors shall publicly count in the polling place the votes cast and ascertain the results. The Board of Election Inspectors shall not adjourn or postpone or delay the count until it has been fully completed, unless otherwise ordered by the Local COMELEC for just cause.

Section 8. *Rules for the appreciation of ballots.* In the reading and appreciation of ballots, every ballot shall be presumed to be valid unless there is clear and good reason to justify its rejection. The board of election inspectors shall observe the following rules, bearing in mind that the object of the election is to obtain the expression of the voter's will:

- a. When a vote for any position is accomplished in a manner violative of the printed instructions, the vote for that position shall be considered invalid. However, its invalidity will not affect the validity of the entire ballot;

- b. Any marking other than those specified or words written in the ballot shall void the entire ballot in all cases.
- c. Markings for two different candidates in the same position shall void only the position.
- d. The voter himself must authenticate erasures by affixing his full signature as shown in the voter's list or UST identification card otherwise the vote for that position shall be void.
- e. The Central COMELEC may rule on other analogous circumstances and may recommend the resolution of an issue in case of conflict with the appreciation of ballots.

Section 9. *Manner of delivery and transmittal of election returns.* For LSC elections, the copy of the election returns of a polling place shall be delivered by the Board of Election Inspectors to the Local Board of Canvassers which should be place inside a sealed envelope signed by the chairperson of the Board of Election Inspectors, affixing thereon his right thumbprint and duly received by the chairperson of the Local Board of Canvassers or his/her authorized representative, who must also be a member of the said Board.

The same procedure shall be followed for the CSC election, provided that the Local Board of Canvassers will undertake the delivery of the election returns to the Central Board of Canvassers.

Section 10. *Canvass by the Local Board of Canvassers.* The Local Board of Canvassers shall meet not later than nine o'clock in the evening of the election day at the place designated by the said unit to receive the election returns and to immediately canvass those that may have already been received. It shall not adjourn until the canvass shall have been complete.

Before the Local Board of Canvassers adjourns, it shall immediately accomplish the canvass return form, which states therein the results of the election. It shall furnish the Central COMELEC a certified true copy and shall make it available for the knowledge of all other interested parties. The canvass returns must be placed inside a sealed envelope. The Board shall sign across the seal of the envelope, or affix their right thumbprint. It shall contain the total votes canvassed for the officers of the CSC to the Central Board of Canvassers under proper receipt to be signed by all the members thereof. The Local Board of Canvassers adjourns upon the receipt of the total votes canvassed by the Central Board of Canvassers.

Section 11. *Canvass by the Central Board of Canvassers.* – The Central Board of Canvassers shall meet immediately prior to the transmittal of the total votes canvassed by the Local Board of Canvassers at the place designated by the former to receive the total votes canvassed by the latter and immediately canvass those that may have already been received. It shall not adjourn until the canvass shall have been completed.

Section 12. *When election returns are delayed, lost, or destroyed.* In case the copy of the election returns or canvass returns are missing, the Board of Canvassers concerned shall, by messenger or otherwise, cause to recover such missing election returns from the Board of Election Inspectors or canvass returns from the Local Board of canvassers, as the case may be. The recovered election returns or canvass returns shall be verified accordingly. In case of loss or destruction of election returns or canvass returns, the Board of Canvassers concerned shall use best obtainable evidence to determine the result of the election. The COMELEC unit concerned shall issue a decision adopting the said evidence. It may include any authentic copies of said election returns or certified copy of the said election returns issued by the COMELEC. The Central COMELEC shall immediately direct a commissioner to investigate the case and make a report on the matter.

The Board of Canvassers, notwithstanding the fact that not all the election returns have been received by it, may terminate the canvass and proclaim the candidates elected on the basis of the available election returns if the missing election returns will not affect the results of the election.

Section 13. *Discrepancies in election returns.* In case it appears to the Board of Canvassers that there exists discrepancies in the other authentic copies of the election returns from a polling place, the COMELEC, upon motion of the Board of Canvassers or any candidate affected and after due notice to all candidates concerned, shall proceed summarily to determine whether the integrity of the ballot box had been preserved, and once satisfied thereof shall order the opening of the ballot box to recount the votes cast in the polling place solely for the purpose of determining the true result of the count of votes of the candidates concerned.

Section 14. *When integrity of ballots is violated.* – If upon the opening of the ballot box as ordered by the COMELEC in the next preceding section, it should appear that there is evidence or sign of replacement, tampering, or violation of the integrity of the ballots, the COMELEC shall not recount the ballots but shall forthwith seal the ballot box and order its safekeeping.

Section 15. *Canvassing of remaining or unquestionable uncontested election returns to continue.* In cases under section 9, hereof, the Board of Canvassers shall continue the canvass of the remaining or uncontested election returns. If, after the canvass of all said returns, it shall be determined that the returns which have been set aside will affect the result of the election, no proclamation shall be made in violation hereof shall be null and void.

Section 16. *When provisions on Manual Elections Applicable.* The provisions of this article on manual elections shall only be applicable in special circumstances where electronic voting cannot be done.

ARTICLE XI PROCLAMATION

Section 1. *Proclamation.* – The winners of CSC and LSC elections shall be proclaimed not later than five (5) school days from the last day of the election. However, if an election protest has been filed against any of the elective candidates, his proclamation shall be subject to the resolution of the protest, without prejudice to the proclamation of the other winning candidates.

ARTICLE XII ELECTION PROTEST AND OFFENSES

Section 1. *Election violations and offenses.* The following acts shall constitute an election offense:

- a. Election Offenses in general:
 1. Any person, associate, or group, who gives, offers, or promises money or anything of value, or any like enticement, in order to induce anyone to vote for or against any candidate or to withhold his vote in the election.
 2. Any person who, directly or indirectly, threatens, influences, intimidates or actually causes, inflicts or produces any violence, injury, or damage upon any person or persons, or use any fraudulent device or scheme, to compel, or induces such persons to vote or to refrain from voting;

3. Any person who, directly or indirectly, threatens, influences, intimidates, or actually causes, inflicts or produces any violence, injury, or damage upon any election official or election employee in the performance of his election functions or duties;
 4. Any person who uses any guise whatsoever, directly or indirectly, CSC or LSC funds for any election campaign or partisan political activity;
 5. Any person, associate or group who prematurely declares the result of the election;
 6. Failure to submit the financial statement twelve (12) school days after the date of elections; and
 7. Any person who violates of any provision of this Code and other rules that the COMELEC may prescribe.
- b. Election Offenses on Voting:
1. Any person who votes more than once in the same election;
 2. Any person who votes in substitution of another whether with or without the latter's consent. The person who allows another to vote in his place shall be similarly liable;
 3. Any member of the Board of Election Inspectors charged with the duty of reading of the ballots during the votes who deliberately omits to read the vote duly written on the ballot, or misreads the vote actually written thereon or reads the name of the candidate where no name is written on the ballot;
 4. Any member of the Board of Election Inspectors charged with the duty of tallying the votes in the tally board or sheet, election returns or other prescribed form who deliberately fails to record a vote therein or records erroneously the votes as read, or records a vote where no such vote has been read;
 5. Any person who, for any cause whatsoever, disrupts the peace of the election process, or performs any act prejudicial to the orderly, and honest conduct of elections;
 6. Any person who manipulates and/or attempts to manipulate election-related data;
 7. Any person who votes or attempts to vote outside the polling place;
 8. Any person who commits acts analogous to the foregoing; or
 9. Any person who violates any provision of this Code and other rules that the COMELEC may prescribe.

The Central and Local COMELEC shall consider all the offenses cited in Section 1 as a major offense. A penalty of suspension from participating in the next elections shall be given to a person or group of persons who commit any of the aforementioned offenses.

Section 2. *Penalties for Election Offenses.* Any person found in violation of the provisions of the SEC shall be subjected to the following penalties except as to those acts where this Code specifically prescribes another penalty:

- a. First offense – Reprimand with stern warning that repetition of the offense will accord a heavier penalty.
- b. Second offense – Disqualification of a Candidate, Permanent Disqualification from office of a student, suspension, or cancellation of registration of a political party, and the Central COMELEC shall recommend the suspension of the student concerned as sanctioned by the student handbook.

With regard to offense stated in Section 1 (a) number 6 herein, the winning candidate shall not take his/her oath of office unless he/she complies with the submission therewith and a penalty of disqualification may be imposed after due notice and hearing.

Any COMELEC Officer found guilty of violating the USEC shall be removed from the position and may be subjected to disciplinary action under the provisions of the student handbook.

Section 3. *Election protest.* An election protest is any question pertaining to, or affecting, the canvassing of votes which may be raised by any candidate or by any registered political party before the Board of Canvassers or directly with the COMELEC unit having administration of the election concerned, in which case it shall be called a pre-proclamation controversy. Any contest relating to the election, returns, and qualifications or any elective official, in which case it shall be called an election contest.

Section 4. *Filing of election protest and/or election offenses.* All complaints involving election protest and/or offenses shall be filed in writing with the appropriate COMELEC unit, not later than five (5) school days after the occurrence of the event which gave rise to the complaint.

Section 5. *Answer required.* The COMELEC unit with which the complaint has been filed shall forthwith require the alleged offender to submit his written reply to the complaint within five (5) school days from the date of receipt of the notice.

Any complaint not replied to by the alleged offender within the period herein fixed shall be deemed uncontroverted.

Section 6. *When decision must be rendered.* The COMELEC unit shall render its decision on the complaint within five (5) school days from the receipt of the reply, or within five (5) school days from the day when the offender should have filed his/her reply.

Section 7. *Appeal.* Appeal from a decision rendered by a Local COMELEC unit may be made to the Central COMELEC, not later than five (5) school days from the receipt of a copy of the decision.

Failure to file an appeal within the period herein fixed shall render the decision final and executory.

Appeal from the decisions, orders, and rulings of the Central COMELEC in an election contest and those relating to the exercise of its quasi-judicial powers shall be subject to review, upon proper appeal, before the Central Judiciary Board. Provided, such review shall be limited to questions of law, misappreciation of facts, instances of grave abuse of discretion amounting to patent and substantial denial of due process, or for lack of jurisdiction.

ARTICLE XIII
INITIATIVE AND REFERENDUM

Section 1. *Definition of Terms.* — For the purpose of this article, the following terms shall mean:

- a. *"Initiative"* refers to the power of the people to propose amendments to the constitution or to propose and enact legislations through an election called for the purpose.

There are two (2) systems of initiative, namely:

- a.1 Initiative on the constitution which refers to a petition proposing amendments to the constitution; and
 - a.2 Initiative on other laws which refers to a petition proposing to enact a university-wide legislation or other laws.
- b. *"Indirect initiative"* is exercise of initiative by the people through a proposition sent to the Central Board for action.
- c. *"Referendum"* is the power of the electorate to approve or reject a legislation through an election called for the purpose.
- d. *"Proposition"* is the measure proposed by the voters.
- e. *"Plebiscite"* is the electoral process by which an initiative on the constitution is approved or rejected by the people.
- f. *"Petition"* is the written instrument containing the proposition and the required number of signatories. It shall be in a form to be determined by and submitted to the Commission on Elections, hereinafter referred to as the Commission.

Section 2. *Who may exercise.* The power of initiative and referendum may be exercised by all *bona fide* students of the University of Santo Tomas.

Section 3. *Requirements.*

- a. To exercise the power of initiative and referendum, at least ten per centum (10%) of the total number of the student population, of which every college, faculty, school, or institute is represented by at least three per centum (3%) of the students thereof, shall sign a petition for the purpose and register the same with the Commission.
- b. A petition for an initiative on the CSC Constitution must have at least twelve per centum (12%) of the total number of student population as signatories, of which every college, faculty, school, or institute must be represented by at least three per centum (3%) of the students therein. Initiative on the CSC Constitution may be exercised only after three (3) years from the ratification of the CSC Constitution and only once every three (3) years thereafter.
- c. The petition shall state the following:
 - c.1 Contents or texts of the proposed law sought to be enacted, approved or rejected, amended or repealed, as the case may be;
 - c.2 The proposition;
 - c.3 The reason or reasons therefore;
 - c.4 That it is not one of the exceptions provided herein;
 - c.5 Signatures of the petitioners or registered voters; and

c.6 An abstract or summary in not more than one hundred (100) words which shall be legibly written or printed at the top of every page of the petition.

- d. A referendum or initiative affecting a law passed by the legislative assembly of a college, faculty, school, or institute is deemed validly initiated if the petition thereof is signed by at least ten per centum (10%) of the students in the college, faculty, school, or institute, of which every program must be represented by at least three per centum (3%) of the students therein; provided, however, that if the college, faculty, school, or institute is composed only of one (1) program, then at least each class should be represented by at least three per centum (3%) of the students therein.

Section 4. Conduct and Date of University-wide Initiative and Referendum. The Commission shall call and supervise the conduct of initiative and referendum. Within a period of thirty (30) calendar days from receipt of the petition, the Commission shall, upon determining the sufficiency of the petition, publish the same at least twice in the University newsletter or its equivalent and set the date of the initiative or referendum which shall not be earlier than forty-five (45) calendar days but not later than ninety (90) calendar days from the determination by the Commission of the sufficiency of the petition.

Section 5. Effectivity of University-wide Initiative or Referendum proposition.

- a. The proposition of the enactment, approval, amendment or rejection of a law shall be submitted to and approved by a majority of the votes cast by all the *bona fide* students of the University of Santo Tomas.

If, as certified to by the Commission, the proposition is approved by a majority of the vote cast, the law proposed for enactment, approval, or amendment shall become effective fifteen (15) calendar days following completion of its publication in the University newsletter. If, as certified by the Commission, the proposition to reject a law is approved by a majority of the votes cast, the said law shall be deemed repealed and the repeal shall become effective fifteen (15) calendar days following the completion of publication of the proposition and the certification by the Commission in the University newsletter.

However, if the majority vote is not obtained, the national law sought to be rejected or amended shall remain in full force and effect.

- b. The proposition in an initiative on the constitution approved by a majority of the votes cast in the plebiscite shall become effective as to the day of the plebiscite.
- c. A university-wide or college initiative proposition approved by majority of the votes cast in an election called for the purpose shall become effective fifteen (15) calendar days after certification and proclamation by the Commission.

Section 6. Prohibited Measures. No petition embracing more than one (1) subject shall be submitted to the electorate.

Section 7. Indirect Initiative. Any duly accredited university or college organization may file a petition for indirect initiative with the Central Board. The petition shall contain a summary of the chief purposes and contents of the bill that the organization proposes to be enacted into law by the legislature.

The procedure to be followed on the initiative bill shall be the same as the enactment of any legislative measure before the Central Board except that the said initiative bill shall have precedence over the pending legislative measures on the board.

Section 8. *Appeal.* The decision of the Commission on the findings of the sufficiency or insufficiency of the petition for initiative or referendum may be appealed to the Central Judiciary Board within thirty (30) calendar days from notice thereof.

Section 9. *Procedure in Collegiate Initiative.*

- a. Not less than five hundred (500) students in case of college and faculties, and not less than one hundred (100) in case of schools and institutes, may file a petition with the student assembly or collegiate legislative body, respectively, proposing the adoption, enactment, repeal, or amendment, of any law.
- b. If no favorable action thereon is made by the collegiate legislative body within (30) calendar days from its presentation, the proponents through their duly authorized and registered representative may invoke their power of initiative, giving notice thereof to the collegiate legislative body concerned.
- c. The proposition shall be numbered serially starting from one (1). The secretary of local student council or his designated representative shall extend assistance in the formulation of the proposition.
- d. Two or more propositions may be submitted in an initiative.
- e. Proponents shall have ninety (90) calendar days in case of colleges and faculties and sixty (60) calendar days in case of schools and institutes, from notice mentioned in subsection (b) hereof to collect the required number of signatures.
- f. The petition shall be signed before an election officer, or his designated representative, in the presence of a representative of the proponent, and a representative of a student assemblies and collegiate legislative bodies concerned in a public place in the college, faculty, school, or institute, as the case may be. Signature stations may be established in as many places as may be warranted.
- g. Upon the lapse of the period herein provided, the Commission on Elections, through its office in the local student council concerned shall certify as to whether or not the required number of signatures has been obtained. Failure to obtain the required number is a defeat of the proposition.
- h. If the required number of signatures is obtained, the Commission shall then set a date for the initiative at which the proposition shall be submitted to the students in the local student council concerned for their approval within sixty (60) calendar days from the date of certification by the Commission, as provided in subsection (g) hereof. The initiative shall then be held on the date set, after which the results thereof shall be certified and proclaimed by the Commission on Elections.

Section 10. *Effectivity of Collegiate Proposition.* If the proposition is approved by a majority of the votes cast, it shall take effect fifteen (15) calendar days after certification by the Commission as if affirmative action thereon had been made by the collegiate legislative and executive body concerned. If it fails to obtain said number of votes, the proposition is considered defeated.

Section 11. *Limitations on Collegiate Initiatives.*

- a. The power of collegiate initiative shall not be exercised more than once a year.
- b. Initiative shall extend only to subjects or matters which are within the legal powers of the collegiate legislative bodies to enact.
- c. If at any time before the initiative is held, the collegiate legislative body shall adopt in *toto* the proposition presented, the initiative shall be cancelled. However, those against such action may, if they so desire, apply for initiative in the manner herein provided.

Section 12. *Limitations upon Collegiate Legislative Bodies.* — Any proposition or ordinance or resolution approved through the system of initiative and referendum as herein provided shall not be repealed, modified or amended, by the collegiate legislative body concerned within one (1) academic year from the date therefrom, and may be amended, modified or repealed by the collegiate legislative body within three (3) years thereafter by a vote of three-fourths (3/4) of all its members.

Section 13. *Local Referendum.* Notwithstanding the provisions of Section 4 hereof, any collegiate legislative body may submit to the students of the college, faculty, school, or institute for the approval or rejection, any law or resolution duly enacted or approved.

Said referendum shall be held under the control and direction of the Commission within forty-five (45) calendar days in case of colleges and faculties and thirty (30) calendar days in case of schools and institutes.

The Commission shall certify and proclaim the results of the said referendum.

ARTICLE XIV TRANSITORY PROVISIONS

Section 1. *Pending Action.* Pending actions arising before the effectivity of this code shall be governed by the rules then in effect.

ARTICLE XV AMENDMENTS OR REVISIONS

Section 1. *Call for amendments or revisions.* The CSC Central Board may after due notice and public hearing, by a vote of two-thirds (2/3) of all its members, propose any amendment or revision of this Code, or call a convention for such a purpose.

Section 2. *Call for convention.* The CSC Central Board, by vote of two-thirds of its members call a convention for the purpose of amending or revising this code, or by a majority vote of all the members submit the question calling such a convention to the student body in a referendum.

Section 3. *Request from COMELEC.* The Central COMELEC with a majority vote of its members, being the acting body of the Student Election Code, will have the power to request the CSC Central Board to call for an amendment or revision of the Code.

Section 4. *Amendment or Revision of the Code.* Upon the call for an amendment or revision of the Code, the CSC Central Board shall direct the Central COMELEC to amend or revise the Code. After drafting the proposed amendments or revisions, the COMELEC shall present it to the CSC Central Board for approval.

Any amendment to or revision of this Code shall be approved upon a two-thirds (2/3) vote of the entire membership of the CSC Central Board in a meeting called for this purpose.

ARTICLE XVI
FINAL PROVISIONS

Section 1. *Repealing clause.* The Student Election Code of 2007 and its Implementing Rules and Regulations are hereby expressly repealed. All election laws, decrees, rules and regulations or parts thereof, inconsistent with the provisions of this Code are hereby repealed.

Section 2. *Separability Clause.* If any part hereof is held invalid or declared unconstitutional, the remainder of this Act not otherwise affected shall remain in full force and effect.

Section 3. *Effectivity.* This Code shall take effect on June 2011.

Signed and approved this 29th day of March, year 2011.

Certified true and correct by:

(Sgd.) GLEN CAMILLE BUENDIA
Secretary to the Executive
UST Central COMELEC

(Sgd.) HERAZEUS CHRISTINE UY
Head, Legal Division
UST Central COMELEC

(Sgd.) LOUISE MALABANAN
Chairperson
UST Central COMELEC

(Sgd.) RANDOLPH IAN CLET
Speaker
CSC Central Board

Noted by:

(Sgd.) Asst. Prof. ANITA P. GARCIA
Director
Student Welfare and Development Board

(Sgd.) Atty. ANTONIO M. CHUA
Adviser, UST Central COMELEC
OSA Legal Consultant

(Sgd.) PROF. EVELYN A. SONGCO PH.D.
Assistant to the Rector for Student Affairs
University of Santo Tomas

The undersigned members of the Central COMELEC hereby certify the authenticity and truthfulness of the above provisions.

CENTRAL COMMISSION ON ELECTIONS
Academic Year 2010-2011

(Sgd.) LOUISE MALABANAN
Chairperson
Faculty of Arts and Letters

(Sgd.) HAZEL XYLENE AGOSILA
Commissioner
College of Architecture

(Sgd.) CHARMAGNE LOREN YERRO
Vice Chairperson
Faculty of Pharmacy

(Sgd.) ISAIAH GIL MADLAMBAYAN
Commissioner
College of Commerce

(Sgd.) GLEN CAMILLE BUENDIA
Secretary to the Executive
Faculty of Engineering

(Sgd.) MARY RENEBE TUGON
Commissioner
Faculty of Medicine and Surgery

(Sgd.) KATRINA ROSEOS
Secretary to the Adjudicatory
College of Education

(Sgd.) GENEVIEVE GEÑOSO
Commissioner
Conservatory of Music

(Sgd.) HERAZEUS CHRISTINE UY
Head, Legal Division
Faculty of Civil Law

CORHINNE BIANCA MENOS
Commissioner
College of Nursing

(Sgd.) KIMBERLY ANN ALBA
Finance Officer
AMV-College of Accountancy

(Sgd.) RACHELLE ANN VASQUEZ
Commissioner
College of Rehabilitation Sciences

(Sgd.) RIA COLLEEN MARQUEZ
Operations Officers
College of Tourism and Hospitality Management

(Sgd.) FRAY ANTHONY ACUPAN, OSA.
Commissioner
Faculty of Sacred Theology

(Sgd.) PAUL ANGELO TOMBOC
Logistics Officer
Faculty of Philosophy

JEROME BARBADILLO
Commissioner
UST High School

(Sgd.) RONNEL TUMBAGAHAN
Public Information Officer
College of Fine Arts and Design

(Sgd.) BIEN DOMINIC OAMIL
Commissioner
Education High School

(Sgd.) SERGIE PAUL FERNANDEZ
Commissioner
College of Science

Noted by:

(Sgd.) Asst. Prof. ANITA P. GARCIA

Director

Student Welfare and Development Board

(Sgd.) Atty. ANTONIO M. CHUA

Adviser, UST Central COMELEC

OSA Legal Consultant

(Sgd.) PROF. EVELYN A. SONGCO PH.D.

Assistant to the Rector for Student Affairs

University of Santo Tomas

The undersigned members of the COMELEC Chamber of Chairpersons hereby certify the authenticity and truthfulness of the above provisions.

COMELEC CHAMBER OF CHAIRPERSONS
Academic Year 2010-2011

(Sgd.) VIRGINIA CARMELA MEDRANO
Primus
Faculty of Arts and Letters

(Sgd.) LEAH ILAGAN
Faculty of Medicine and Surgery

(Sgd.) BEATRIZ DOMINIQUE TADEO
Vicar
College of Education

(Sgd.) REMEDIOS CONSUNJI
Conservatory of Music

SARAH LANE CARALDE
AMV – College of Accountancy

(Sgd.) MARY ANGELI MENDOZA
College of Nursing

(Sgd.) JOHN MICHAEL CASTILLO
College of Architecture

(Sgd.) MARICE BERNAL
Faculty of Pharmacy

ANGELI ALBAÑA
Faculty of Civil Law

(Sgd.) JESSIJAME CABINGAN
College of Rehabilitation Sciences

(Sgd.) ERNEST RYAN DOMINGO
College of Commerce

(Sgd.) SHEANNE MERCADO
College of Science

HEIDI GUERRA
Faculty of Engineering

(Sgd.) ASHER MARIE VERSOZA
College of Tourism and Hospitality
Management

FRANCIA FRANCO
College of Fine Arts and Design

(Sgd.) LOTTI GALICIA
Education High School

Noted by:

(Sgd.) Asst. Prof. ANITA P. GARCIA
Director
Student Welfare and Development Board

(Sgd.) Atty. ANTONIO M. CHUA
Adviser, UST Central COMELEC
OSA Legal Consultant

(Sgd.) PROF. EVELYN A. SONGCO PH.D.
Assistant to the Rector for Student Affairs
University of Santo Tomas

The undersigned members of the CSC Central Board hereby APPROVE and CERTIFY the authenticity and truthfulness of the above provisions of the UST Student Election Code of 2011.

CENTRAL STUDENT COUNCIL-CENTRAL BOARD
Academic Year 2010-2011

(Sgd.) RANDOLPH IAN CLET

President, Faculty of Civil Law Student Council
Speaker, CSC-Central Board

(Sgd.) JERNOLD JOEL VERGARA, JR.

President, AMV – College of Accountancy Student Council
Deputy Speaker, CSC-Central Board

(Sgd.) KABAITAN BAUTISTA

President, Conservatory of Music Student Council
Secretary, CSC-Central Board

(Sgd.) RYAN JOSEPH AMANDY

President
College of Commerce Student Council

(Sgd.) MICHAEL JOHN INES

President
Education High School Student Council

(Sgd.) JONAH MAE NABOR

President
UST High School Student Council

(Sgd.) RON MARCO TAGUIMACON

President
College of Fine Arts and Design Student Council

(Sgd.) ISABEL NERI

President
Education Student Council

(Sgd.) VALLANCE EDLAGAN

President
College of Science Student Council

(Sgd.) VIRNA NOREENA SENO

President
Medicine and Surgery Student Council

(Sgd.) RENDALYN TAN

President
College of Rehabilitation Sciences Student Council

(Sgd.) RONA JEAN SAGUM

President
Faculty of Engineering Student Council

ROYCE JASPER ONG

President
Nursing Central Board of Student

(Sgd.) ZENON GUANZON

President
Theological Society

(Sgd.) DIANA LYNN SY

President
College of Tourism and Hospitality Management
Student Council

(Sgd.) JILL CHUA YAP

President
Faculty of Pharmacy Student Council

(Sgd.) JAKE MARCO BUTIONG

President
Faculty of Philosophy Student Council

(Sgd.) JUSTIN DAVID TAN

President
College of Architecture Student Council

(Sgd.) VINCENT ALJON CIFRA

President
Faculty of Arts and Letters Student Council

Noted by:

(Sgd.) Asst. Prof. ANITA P. GARCIA

Director

Student Welfare and Development Board

(Sgd.) Atty. ANTONIO M. CHUA

Adviser, UST Central COMELEC

OSA Legal Consultant

(Sgd.) PROF. EVELYN A. SONGCO PH.D.

Assistant to the Rector for Student Affairs

University of Santo Tomas